SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1260 of 2022 (YEAR: 2022)

CORAM: D.Y. CHANDRACHUD, HIMA KOHLI

Dashrathbhai Trikambhai Patel
... Appellant(s) / Petitioner(s)
Versus
Hitesh Mahendrabhai Patel
... Respondent(s)

Acts Referred:	Negotiable Instruments Act, 1881
Sections:	Section 138 NI Act, Section 56 NI Act

JUDICIAL HEADNOTE & SUMMARY

Held that where part-payment has been made before presentation, failure to endorse part-payment on cheque under Section 56 prevents Section 138 from being triggered for original full amount.

RATIO DECIDENDI

The Court held that: Held that where part-payment has been made before presentation, failure to endorse part-payment on cheque under Section 56 prevents Section 138 from being triggered for original full amount. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Dashrathbhai Trikambhai Patel v. Hitesh Mahendrabhai Patel (Criminal Appeal No. 1260 of 2022) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Negotiable Instruments Act, 1881, particularly Section 138 NI Act, Section 56 NI Act. Held that where part-payment has been made before presentation, failure to endorse part-payment on cheque under Section 56 prevents Section 138 from being triggered for original full amount.

OPERATIVE ORDER

ORDER: Decided